

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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RAHEEM JAMES and JAVON WILLIAMS,

SUMMONS

Plaintiffs, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ONYX SALVADOR, Shield No. 22056, NYPD POLICE
OFFICER RYAN C. BRADY, Shield No. 3653, NYPD
POLICE OFFICER SCOTT SMITH, Shield No. 10427,
and NYPD POLICE OFFICERS JOHN/JANE DOE
NUMBERS 1-10,

Plaintiffs designate Bronx
County as the place of trial.

Defendants.
----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 17, 2022

Yours, etc.

C. Cass Luskin

C. CASS LUSKIN, ESQ.
SHULMAN AND HILL PLLC
Attorneys for Plaintiffs
1 State Street Plaza, 15th FL
New York, New York 10004
(347) 927-1872

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER ONYX SALVADOR, SHIELD NO. 22056, 318 Command,
44th Precinct; 2 East 169th Street, Bronx, NY 10452

NYPD POLICE OFFICER RYAN C. BRADY, SHIELD NO. 3653, 44th Precinct; 2 East
169th Street, Bronx, NY 10452

NYPD POLICE OFFICER SCOTT SMITH, SHIELD NO. 10427, 44th Precinct; 2 East
169th Street, Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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RAHEEM JAMES and JAVON WILLIAMS,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ONYX SALVADOR, Shield No. 22056, NYPD POLICE
OFFICER RYAN C. BRADY, Shield No. 3653, NYPD
POLICE OFFICER SCOTT SMITH, Shield No. 10427,
and NYPD POLICE OFFICERS JOHN/JANE DOE
NUMBERS 1-10,**JURY TRIAL DEMANDED**

Defendants.

----- X

Plaintiffs RAHEEM JAMES and JAVON WILLIAMS, by their attorneys, Shulman & Hill, PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 26, 2021, at approximately 1:00 a.m., plaintiffs RAHEEM JAMES and JAVON WILLIAMS, while lawfully in the vicinity of 1268 Clay Avenue in Bronx, New York, were subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, the plaintiffs were subject to excessive force by defendant officers, causing them both to suffer humiliation as well as mental and emotional injury. Plaintiffs were unlawfully imprisoned at the 44th Precinct Police Station and then Rikers Island for approximately one (1) week before they were released on their own recognizances. Plaintiffs were denied the right to due process and a fair trial for false charges, which were dismissed and sealed on or around May 13, 2021. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiffs the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff RAHEEM JAMES (“Mr. James”) is a resident of the State of New York.

3. Plaintiff JAVON WILLIAMS (“Mr. Williams”) is a resident of the State of New York.

4. NYPD POLICE OFFICER ONYX SALVADOR, Shield No. 22056, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

5. NYPD POLICE OFFICER ONYX SALVADOR, Shield No. 22056, is currently and was at all times relevant herein, assigned to the 44th Precinct.

6. NYPD POLICE OFFICER ONYX SALVADOR, Shield No. 22056, is being sued in his individual and official capacities.

7. NYPD POLICE OFFICER RYAN C. BRADY, Shield No. 3653, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

8. NYPD POLICE OFFICER RYAN C. BRADY, Shield No. 3653, is currently and was at all times relevant herein, assigned to the 44th Precinct.

9. NYPD POLICE OFFICER RYAN C. BRADY, Shield No. 3653, is being sued in his individual and official capacities.

10. NYPD POLICE OFFICER SCOTT SMITH, Shield No. 10427, is currently and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

11. NYPD POLICE OFFICER SCOTT SMITH, Shield No. 10427, was at all times relevant herein, assigned to the 44th Precinct.

12. NYPD POLICE OFFICER SCOTT SMITH, Shield No. 10427, is being sued in his individual and official capacities.

13. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

14. NYPD POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.

15. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

16. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

17. Plaintiffs in furtherance of their causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

18. In accordance with New York State law and General Municipal Law Section 50, plaintiffs testified at a hearing held pursuant to General Municipal Law Section 50-H on July 16, 2021.

19. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On February 26, 2021, at approximately 1:00 A.M., Plaintiffs were lawfully present in the vicinity of 1268 Clay Avenue in Bronx, New York, when the defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiffs without probable cause or legal justification.

23. Plaintiffs were sitting in a friend's car outside Mr. Williams' apartment building, which is located near the southeast corner of 169th Street and Clay Avenue, smoking cigarettes and talking to a few friends who were gathered on the sidewalk.

24. Two uniformed police officers approached the plaintiffs and asked them whose car they were sitting in; the plaintiffs told the officers that they were unsure which of their friends it belonged to.

25. The defendant officers then told both plaintiffs to step out of the vehicle, at which point they were both subjected to an unlawful pat-down search; when the officers found nothing, they told the two men to carry on about their business and walked away.

26. Approximately 10 minutes later, the defendant officers returned with approximately six (6) more defendant officers, at which time they told Mr. James and Mr. Williams to get out of the vehicle again; both men obeyed.

27. It was at this point that the defendant NYPD officers began to unlawfully arrest the plaintiffs, restraining them with metal handcuffs and again subjecting them to an unlawful pat-down search.

28. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

29. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

30. Plaintiffs did not resist arrest.

31. The Defendant Officers then placed the Plaintiffs in the back of an NYPD vehicle and transported them against their will to the 44th Precinct, where they were unlawfully fingerprinted, photographed, searched, and placed in a holding cell.

32. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

33. After spending approximately 11 hours in unlawful custody at the 44th Precinct, defendant officers interrogated Plaintiffs about a gun that was found inside the car. Both plaintiffs maintained that they knew nothing about any weapon, that it wasn't their vehicle; thereafter, they both consented to a DNA swab.

34. Both plaintiffs were then transferred to Bronx County Central Bookings where they were again unlawfully fingerprinted, photographed, searched, and placed in a holding cell.

35. The defendant police officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiffs committed a crime.

36. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that the plaintiffs were guilty of Criminal Possession of a Firearm.

37. On February 28, 2021, after approximately 72 hours in custody, based on the Defendant Officers false allegations, the Plaintiffs were arraigned in criminal court and bail was set by the judge.

38. Mr. Williams was able to make bail soon after and was released after three days in unlawful custody; Mr. James was unable to make bail for his release until after he had spent approximately eight days in unlawful police custody.

39. Some time after their arraignment, the results of the DNA swab from the 44th Precinct cleared both Mr. James and Mr. Williams of any connection to the contraband defendant officers claimed they found on February 26, 2021.

40. The charges which were falsely made against the Plaintiffs by the defendant officers were thereafter dismissed and sealed on or around May 13, 2021.

41. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiffs the right to due process and a fair trial.

42. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiffs' right to a fair trial by the individually named defendants caused Plaintiffs to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth and Fourteenth Amendment Rights

43. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

45. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

46. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 45 with the same force and effect as if more fully set forth at length herein.

47. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

48. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

49. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

50. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

51. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

52. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

54. The conduct of defendants in stopping, frisking, and searching Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

55. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

58. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search Plaintiffs.

61. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiffs' Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

65. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein

66. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

67. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

68. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

69. In withholding/creating false evidence against Plaintiffs, RAHEEM JAMES and JAVON WILLIAMS, and in providing/withholding information with respect thereto, defendants violated plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

70. As a result of the foregoing, Plaintiffs, RAHEEM JAMES and JAVON WILLIAMS, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, loss of earnings, emotional distress, embarrassment and humiliation, and deprivation of their constitutional rights.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Violation of Plaintiffs' Fourth And Fourteenth Amendment Rights

74. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The use of excessive force by defendants by, amongst other things, tightly handcuffing them, constituted objectively unreasonable physical seizures of Plaintiffs in violation of their rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

76. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

77. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs, RAHEEM JAMES and JAVON WILLIAMS. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

79. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

83. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

85. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION**Failure to Intervene**

86. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

87. The defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

88. Defendants failed to intervene to prevent the unlawful conduct described herein.

89. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subject to unlawful search and other physical constraints.

90. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

94. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

96. Defendants commenced and continued a criminal proceeding against the plaintiffs.

97. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for the charges for which they were prosecuted.

98. The prosecution and criminal proceedings terminated in Plaintiffs' favor on the aforementioned dates.

99. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiffs' Fourth Amendment rights.

100. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional, economic, and psychological injuries.

JURY DEMAND

103. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs, RAHEEM JAMES and JAVON WILLIAMS, demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 17, 2022

By: C. Cass Lusk
C. CASS LUSKIN, ESQ.
SHULMAN AND HILL PLLC
Attorneys for Plaintiffs
1 State Street Plaza, 15th FL
New York, New York 10004
(347) 927-1872

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER ONYX SALVADOR, SHIELD NO. 22056, 318 Command,
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169th Street, Bronx, NY 10452

ATTORNEY'S VERIFICATION

C. CASS LUSKIN, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York

January 17, 2022

C. Cass Lusk

C. CASS LUSKIN